



# COLLABORATIVE PLANNING



## STATEMENT OF CASE AGAINST REFUSAL OF: PA25/06277

### OUTLINE PLANNING APPLICATION WITH ALL MATTERS RESERVED FOR THE PROPOSED ERECTION OF A SELF-BUILD DWELLING

**Appellant:** Mr. and Mrs. Johns

**Site Address:** Land At Reeves Close, Porthleven, TR13 9PB

**Planning Reference Number:** PA25/05909

**Date:** November 2025

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## **1. Background and Introduction**

- 1.1.1 This Statement of Case has been prepared in support of an appeal against the refusal of planning application PA25/06277, issued on 27 October 2025, for Outline Planning Permission (all matters reserved) for the erection of a self-build dwelling at Land at Reeves Close, Porthleven (TR13 9PB). The reasons for refusal centre on the Council's position that the proposal would result in the permanent loss of designated public open space, contrary to national and local planning policy.
- 1.1.2 The Appellant respectfully contends that the Local Planning Authority (LPA) has misapplied the relevant policy tests in reaching this conclusion. The appeal is supported by a legal opinion from Excello Law, which provides a detailed assessment of the historic and current planning status of the land and demonstrates that the site does not constitute protected public open space in the manner asserted by the Council. This opinion forms a core component of the appeal and confirms that the LPA has erred in its interpretation of the National Planning Policy Framework (NPPF) in respect of "open space" designated for community use.
- 1.1.3 Furthermore, the Appellant has submitted a Unilateral Undertaking (UU) making provision for an off-site financial contribution toward public open space, calculated directly in accordance with the methodology and sum identified by the Council's own Open Space Officer. This mechanism accords with the Heads of Terms accompanying the original application and ensures that any perceived loss of recreational value would be appropriately mitigated through equivalent or better provision, in line with paragraph 104 of the NPPF.
- 1.1.4 The LPA's decision asserts that harm arising from the loss of open space would significantly and demonstrably outweigh the benefits of delivering a single self-build dwelling, even when applying the presumption in favour of sustainable development under NPPF paragraph 11. However, the Appellant maintains that this conclusion is unsupported by robust evidence and fails to take account of both the site's actual planning status and the adequacy of the proposed mitigation. A balanced planning judgement, properly informed by the legal position, material considerations, and the provisions of the Development Plan, strongly favours the grant of permission.
- 1.1.5 This Statement of Case therefore addresses the refusal reason in full, demonstrating that the proposal accords with the objectives of Policies 13, 16 and 25 of the Cornwall Local Plan

(2010–2030) and Policies C1 and G1 of the Climate Emergency DPD (2023), and that the limited and mitigated effects on the site’s current function are significantly outweighed by the benefits of delivering a policy-compliant self-build home within a sustainable settlement.

## 2. Site Location and Context

- 2.1.1 The appeal site lies within the area governed by the Porthleven Neighbourhood Development Plan (NDP), which guides development within the settlement boundary and provides a framework for the identification and protection of valued green spaces. Although the appeal site was originally identified as public open space through the 1998 planning permission for the adjoining residential development (W2/PA92/00570/S01), the planning obligations relating to its maintenance and potential adoption were never completed by the local authority. As demonstrated in the planning permission and associated Section 106 Agreement, both included at **Appendix 1**, the obligation was to dedicate and transfer the land to Kerrier District Council following its layout. Despite the Appellant fulfilling their obligations, including payment of the required maintenance sum (see **Appendix 2**) and notification of completion, formal adoption never occurred, and the Council did not take on the land. This is evidenced in correspondence from Kerrier District Council dated 22 September 2005, reproduced at **Appendix 3**, which confirms the Council's intention to proceed with adoption but shows that the process was not completed.
- 2.1.2 Over the years, and in the absence of any council-led maintenance regime, the land has been subject only to occasional voluntary upkeep by local residents. While such informal mowing and tidying reflects general neighbourhood care, it does not constitute sustained public use, structured management, or formal recreational provision. The site therefore does not function as a recognised component of Porthleven's managed open space network. It is simply a minimally laid-out grassed area, originally intended as amenity space but never adopted, never equipped, and never elevated to meaningful recreational status. This context is fundamental in assessing the land's current planning status and its suitability for sensitive residential development.
- 2.1.3 The position is further clarified through the work undertaken during preparation of the Porthleven Neighbourhood Development Plan, where open spaces across the parish were rigorously assessed for potential designation as Local Green Space (LGS). The process, fully documented in the Green Space Designation Document (July 2019) included at **Appendix 4**, explains the methodology and national policy basis for LGS designation, including reference to paragraphs 99 and 100 of the NPPF (2019) at that time. This document sets out that the community and the PNP Steering Group, through meetings held on 19

March, 16 April and 14 May 2019, identified 19 candidate green spaces for possible designation and undertook targeted consultation with relevant landowners. A sample landowner notification letter, included within Appendix A of **Appendix 4**, explains the reasoning for designation, the policy criteria, and the requirement for community support and demonstrable special value.

- 2.1.4 Crucially, the mapping and list of designated sites, reproduced in full at Appendix 5, show that the appeal site was not included as a candidate or designated space. There is no evidence to suggest that it was ever nominated, assessed, or considered suitable for protection. Its omission from the NDP's assessment process strongly indicates that the site was not regarded as demonstrably special, did not provide notable recreational, ecological or community value, and was not perceived by the community as warranting protection under NPPF Local Green Space criteria.
- 2.1.5 The Appellant's position is further supported by the Legal Opinion prepared by Excello Law, included at **Appendix 6**, which provides a full interpretation of the planning history and confirms that the land does not constitute protected open space in policy terms. The legal advice also concludes that the site's planning status does not preclude its development for residential use, particularly where appropriate mitigation is secured through a planning obligation. In this regard, the Appellant has entered into a Unilateral Undertaking, to support this appeal, which secures an off-site open space contribution calculated using the methodology set out by Cornwall Council's Public Space Officer and consistent with the Heads of Terms submitted with the original application.
- 2.1.6 Taken together, the historic planning documentation (**Appendix 1**), the payment evidence (**Appendix 2**), correspondence confirming incomplete adoption (**Appendix 3**), the NDP green space assessment (**Appendices 4 and 5**), the legal opinion (**Appendix 6**), and the Unilateral Undertaking form a clear and consistent body of evidence. This demonstrates that the land has never been formally adopted, has never functioned as significant open space, was not considered worthy of NDP designation, and is not required open space within the current policy framework. These factors strongly support the reasonableness of the site's development and confirm that its use as a residential plot is appropriate in planning terms.

### 3. Planning History

#### Early Consents and Establishment of the Reeves Close Development

- 3.1.1 The appeal site forms part of a well-documented planning history extending back several decades. The earliest relevant consent, **W2/92/00570/O**, granted in November 1992, established the principle of residential development across the wider landholding. This was followed by a more detailed permission, **W2/PA92/00570/S01**, issued in April 1998, which authorised the construction of sixteen dwellings, associated garages, access roads and services. It was through this layout that the land now forming the appeal site was identified as incidental amenity open space as part of the Reeves Close estate.
- 3.1.2 Although originally intended to function partly as informal open space and partly as a drainage field, the drainage function became redundant when the development was connected to the main sewer. The land was therefore laid out simply as a grassed area in accordance with the minimal specification of the time. The obligations under the accompanying Section 106 Agreement, including the laying out of the open space, payment of a commuted maintenance sum, and transfer to Kerrier District Council, were fulfilled by the landowners, but formal adoption never occurred. This has resulted in the land remaining in private ownership without any Council-led maintenance since its creation.

#### More Recent Planning Applications

- 3.1.3 The site has more recently been the subject of two outline planning applications for a single dwelling. The first, **PA22/10939**, was submitted in late 2022 but withdrawn in February 2023 ahead of determination. A revised scheme, **PA23/02731**, was refused on 14 June 2023 due to the perceived loss of open space without replacement or mitigation, with the Council citing conflict with Policies 13, 16 and 25 of the Cornwall Local Plan, Policies C1 and G1 of the Climate Emergency DPD, and paragraph 99 of the National Planning Policy Framework (2021).

#### The Application Subject to This Appeal

- 3.1.4 The current application, **PA25/06277**, again seeks Outline Planning Permission (all matters reserved) for a self-build dwelling on the same parcel of land. It was refused on 27 October 2025, with the Council repeating earlier concerns regarding loss of open space. This appeal challenges that refusal, supported by a detailed legal opinion, contemporary assessments,



and a Unilateral Undertaking offering an off-site contribution to enhance alternative open space within Porthleven.

**Relevant Appeal Case: Comfort Wartha, Constantine (APP/D0840/W/20/3249081)**

- 3.1.5 A highly relevant and directly comparable appeal decision contained at **Appendix 7** supports the principle underpinning this proposal. In Comfort Wartha, Constantine, the Inspector allowed an appeal for a single dwelling on long-standing incidental open space that had been subject to similar historic obligations, informal use, and ambiguous status. The Inspector held that although the land had originally been identified as open space in connection with earlier permissions, it had never been formally laid out, adopted or maintained by the Council and had only been accessible informally. The Inspector confirmed that these factors, combined with the modest scale, limited function, and proximity to existing recreation facilities, meant the land did not warrant ongoing protection as open space.
- 3.1.6 Crucially, the appeal turned on whether the loss of open space could be appropriately mitigated. The Inspector concluded that an off-site financial contribution, secured through a Section 106 Deed, constituted “an appropriate level of replacement provision for the loss of the existing open space,” and that this approach satisfied both paragraph 97 of the NPPF (now 104) and the statutory tests of Regulation 122 of the CIL Regulations. The Inspector emphasised that the contribution would deliver wider community benefits than retention of a small, underused parcel of grass in situ. This directly mirrors the position here, where a proportionate, officer-calculated contribution is offered to support improvements at the Porthleven Recreation Ground.
- 3.1.7 The Inspector also noted that concerns relating to residents’ expectations, informal maintenance, or historical conveyancing statements did **not outweigh** the planning merits or the appropriateness of mitigation. Importantly, the Open Spaces Team in that case advised that, if considered under modern policy, an off-site contribution would now be favoured over on-site provision, again aligning closely with this application.

**Relevance to the Current Appeal**

- 3.1.8 The Comfort Wartha decision is materially relevant because it addresses:
- an almost identical fact pattern (historic open space, informal community use, no adoption, residual grassed land);
  - the same Local Planning Authority applying similar policies



- the same type of mitigation (off-site financial contribution for recreation improvements); and
- the same policy tests under the NPPF and Local Plan.

3.1.9 In that case, the Inspector concluded that the combination of limited functional value, lack of formal adoption, and the availability of more meaningful nearby recreational provision meant the site could be developed subject to mitigation.

3.1.10 The parallels between the two cases are compelling. The Comfort Wartha appeal provides clear authority that the LPA's concerns can be addressed through a financial contribution, and that refusal on the basis of open space alone is not justified where evidence shows that the land is low value, non-strategic, and capable of being mitigated through appropriate off-site measures, precisely the position applicable to Reeves Close.

## 4. The Appeal Proposal

### Overview of the Proposal

#### Purpose and Scope of the Application

- 4.1.1 This appeal relates to an application seeking Outline Planning Permission for the erection of a self-build dwelling on land at Reeves Close, Porthleven. All matters, namely appearance, access, landscaping, layout and scale, are reserved for future consideration. The intention at this stage is to establish the principle of residential development on the site, with full technical and design detail to be provided in a subsequent Reserved Matters submission, should outline permission be granted.

#### Outline Nature of Submission

- 4.1.2 Given the outline status of the proposal, no detailed architectural drawings, drainage layouts or engineering plans accompany the application. The submission instead focuses on assessing whether the land is appropriate in principle for development, taking into account its planning history, its physical characteristics, the surrounding residential context, and relevant local and national planning policy.

#### Status, History and Function of the Land

##### Original Designation and Relationship to Historic Permissions

- 4.1.3 The appeal site was originally laid out as part of the late-1990s residential development approved under **W2/PA92/00570/S01**, which authorised the construction of sixteen dwellings at Reeves Close and Vicarage Road. At that time, the land that now forms the appeal site was put forward by the applicant and his brother both as incidental amenity open space and as a potential drainage field serving the wider development. The associated Section 106 Agreement required the area to be laid out as open space and transferred to the Council, with public access secured in perpetuity.
- 4.1.4 However, as construction progressed, the development was connected to the main public sewer, meaning that the originally anticipated drainage field was no longer required. The land therefore became solely a simple grassed open area, with no formal equipment, landscaping, or recreational infrastructure. Evidence of these original obligations, and the payments made by the landowners in respect of maintenance, are contained at **Appendices 1–3**.

### **Lack of Adoption and Absence of Formal Management**

- 4.1.5 Despite fulfilling the obligations required of them, including payment of the commuted sum, laying out the grassed area, and notifying the Council, the Appellant never received confirmation of adoption. As demonstrated in correspondence from Kerrier District Council dated 22 September 2005 (**Appendix 3**), although the Council instructed its legal services team to proceed with adoption, the process was never completed, and Cornwall Council has since confirmed that it does not maintain the land.
- 4.1.6 As a result, the land has remained in private ownership and has received no formal management or maintenance from the Town Council or Cornwall Council at any point since its layout.

### **Present-Day Use and Public Access**

- 4.1.7 During the course of the planning application, it was acknowledged that a small number of neighbouring residents occasionally mow or tidy the land on a voluntary basis. While this demonstrates a degree of informal stewardship, it does not represent:
- formal adoption,
  - planned recreational provision,
  - structured public open space management, or
  - a recognised part of the town's green infrastructure network.
- 4.1.8 Contemporary assessments, including those underpinning the Porthleven Neighbourhood Development Plan and Cornwall Council's own open space studies, confirm that the land is not identified as protected, designated, required, or strategic open space within any current local or neighbourhood plan policy.
- 4.1.9 Given its origins as a grassed space intended partly for drainage contingency, its lack of formal equipment or recreational infrastructure, and its long-term absence from any public maintenance regime, the land no longer performs the meaningful community role that was originally anticipated over twenty years ago.

### **Proposed Mitigation**

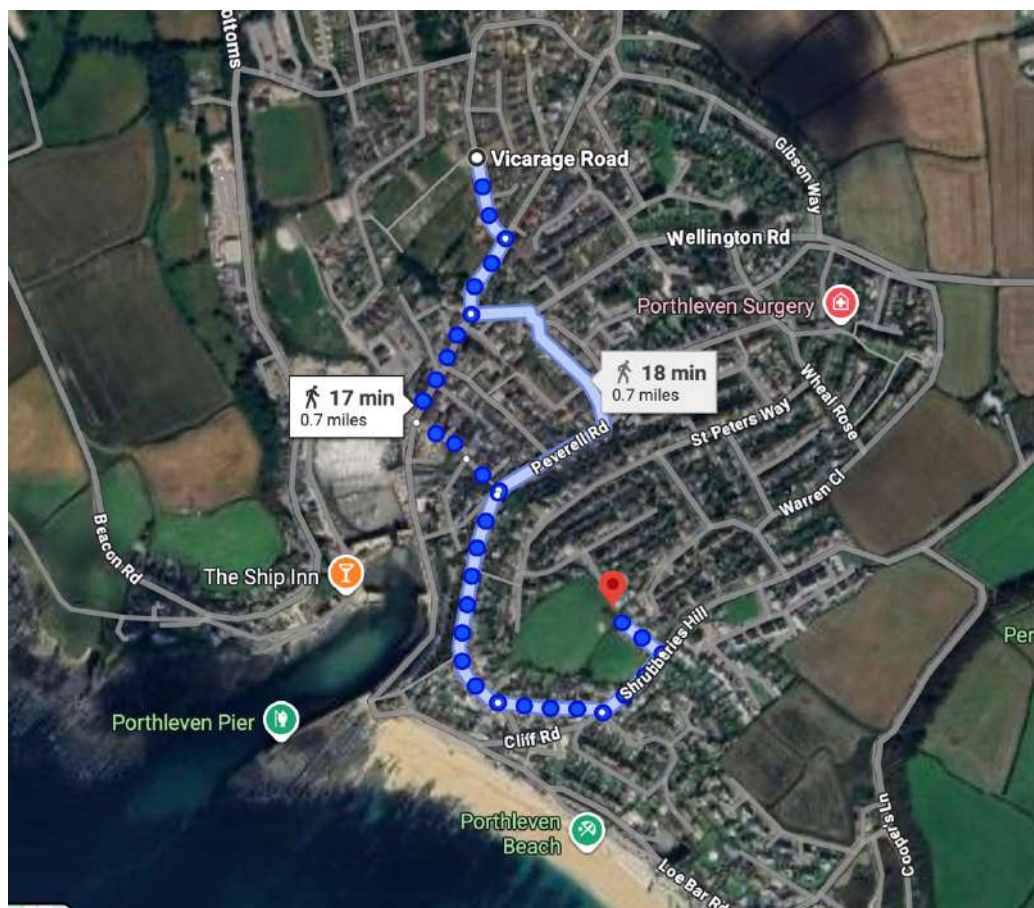
#### **Off-Site Contribution in Accordance with Policy and Officer Advice**

- 4.1.10 To address the theoretical loss of incidental open space, the Appellant has committed to securing an off-site financial contribution, should the Council consider mitigation necessary. This contribution has been calculated using the methodology set out by Cornwall

Council's Principal Public Space Officer, ensuring that the amount is proportionate, evidence-based, and directly aligned with the Council's adopted open space standards.

#### **Delivery of Enhanced Open Space Provision**

- 4.1.11 The secured financial contribution would be directed toward the enhancement of existing green spaces or recreational facilities within Porthleven, most notably the Porthleven Recreation Ground, which the Council's Principal Public Space Officer has identified as the nearest functional "playable space." As illustrated in **Figure 1**, Google Maps confirms that the Recreation Ground lies approximately 700 metres from the appeal site, equating to a 17-minute walk. This facility is already well used by the community, contains established recreational infrastructure, and offers a level of amenity and functional value far superior to the incidental, unequipped grassed area at Reeves Close.



**Figure 1:** Walking route and measured distance between the appeal site and Porthleven Recreation Ground, confirming a 700-metre journey (approximately 17 minutes on foot) as calculated via Google Maps.

- 4.1.12 By channelling investment into a well-established and widely accessed recreational hub, the off-site contribution would not only maintain the overall quantum and accessibility of open

space provision within the settlement but would in practical terms enhance it. This approach delivers a meaningful community benefit that could not be achieved by retaining the small, fragmented parcel at Reeves Close in its current unused state. Accordingly, the proposed contribution fully satisfies the requirements of paragraph 57 of the NPPF (tests for planning obligations) and directly aligns with paragraph 104, which explicitly supports development where open space loss is offset by equivalent or better provision in terms of quantity, quality, and suitability of location.

## 5. Response Refusal

### Overview

5.1.1 The Local Planning Authority's refusal centres on the assertion that the development would lead to the loss of designated public open space of continued community value, and that the proposal fails to satisfy the tests of paragraph 104 of the National Planning Policy Framework (NPPF). This Statement of Case demonstrates that this conclusion is unfounded. When the evidence is considered objectively, including the detailed technical advice of the Council's own Principal Public Space Officer, the site's historic planning function, the lack of adoption or formal management, the results of the Neighbourhood Plan green space assessment, and the highly relevant precedent of the Comfort Wartha appeal, it becomes clear that:

- the appeal site does not function as a strategic, necessary, or irreplaceable component of Porthleven's open space network;
- the land's historic role was partly associated with a drainage contingency, which became redundant once the development connected to the main sewer;
- the Public Space Officer confirms that a financial contribution is an appropriate, proportionate and policy-compliant form of mitigation; and
- paragraph 104 of the NPPF is fully satisfied through the Unilateral Undertaking now provided.

5.1.2 The LPA's conclusion that any alleged harm "significantly and demonstrably outweighs" the benefits is not supported by the evidence.

### The Public Space Officer's Assessment

5.1.3 The consultation response of the Council's Principal Public Space Officer dated 16 September 2025 is the most authoritative and relevant piece of evidence regarding open space. His assessment confirms:

- (i) **Status and scale of the land:** The site was laid out over 22 years ago under the 1998 permission but is only recognised in the most recent open space audit because it was captured mechanically, despite falling below the usual minimum size thresholds. At 844 sq m, the land is too small to serve any strategic open space function and contains no formal play equipment. It meets only the minimum threshold for a "playable space" but has never been used or equipped as such.

- (ii) **Accessibility to alternative facilities:** Residents who might theoretically use the site lie within the maximum accessibility distance of the Porthleven Recreation Ground, the nearest functional playable space. Google Maps confirms this is a 700-metre, 17-minute walk, meaning the community already has access to a far superior, well-used and properly equipped recreational space.
- (iii) **NDP context:** The land was *not* designated as Local Green Space within the Porthleven Neighbourhood Development Plan. The Steering Group assessed 19 candidate sites for possible designation (as documented in the Green Space Designation Document, Appendix 2), yet Reeves Close was not included. This omission strongly indicates that the community and plan-makers did not regard the land as demonstrably special or suitable for long-term protection.
- (iv) **Mitigation under NPPF paragraph 104:** The Officer confirms that because no “surplus” of open space exists, paragraph 104(b) applies: the loss may be justified where equivalent or better provision is secured. He recommends a financial contribution based on Type 1 open space values and calculates a contribution of £16,855, to be used for enhancements at the Porthleven Recreation Ground or similar facilities.
- (v) **Contribution acceptability:** Although the Officer notes that ideally stakeholders might help identify specific projects, he does not state that this is necessary. He explicitly accepts that the assessed figure is an appropriate fallback in the absence of project-specific costing. The LPA misinterprets this preference as a requirement, which has no policy basis.

5.1.4 The LPA’s refusal therefore contradicts its own specialist evidence.

#### **Condition, Use and Function of the Land**

5.1.5 The LPA asserts that the land is “well maintained” and that this implies meaningful community use. This assertion is incorrect. Both Cornwall Council and Porthleven Town Council confirm that they do not maintain the land. Any maintenance observed is informal, sporadic and voluntary, undertaken by neighbouring residents in the absence of any public responsibility for upkeep. Occasional mowing does not establish the land as a formally recognised, managed, or necessary open space. Nor does it confer any statutory protection.



5.1.6 The site's historic function was partly linked to a possible drainage field, which was never required after the development connected to the main sewer. It therefore became an incidental grassed area with no active recreational purpose. Its long-term lack of adoption, absence of equipment, and lack of any planned management demonstrate that it has not fulfilled the role of public open space anticipated at the time of the original Section 106 Agreement.

**Application of NPPF Paragraph 104**

5.1.7 Paragraph 104 permits development of open space where either:

- (a) a surplus is clearly demonstrated; or
- (b) the loss is replaced by equivalent or better provision in terms of quantity, quality and accessibility.

**Surplus:**

5.1.8 The Public Space Officer confirms that Porthleven has at least an average level of Type 1 amenity space, and earlier studies identified a slightly above average level. There is no deficiency. This does not weigh against development.

**Equivalent or better provision:**

5.1.9 This test is clearly satisfied. The Appellant offers a financial contribution supported by the Council's own officer, calculated at £16,855. This contribution will be directed towards Porthleven Recreation Ground, a superior, formalised, and well-used open space capable of providing significantly higher recreational and community benefit than the small, unequipped grassed area at Reeves Close.

5.1.10 The LPA's suggestion that project-specific proposals are required is incorrect, unsupported by policy, and inconsistent with past practice.

**Directly Relevant Appeal Precedent – Comfort Wartha, Constantine**

5.1.11 The Comfort Wartha appeal (APP/D0840/W/20/3249081) provides a compelling and highly relevant precedent. In that case, the site was also historic open space associated with an older Section 52 Agreement, also informally accessed by residents, and also never formally adopted or maintained. The Inspector concluded that a financial contribution was an appropriate and lawful means of addressing any open space loss and that refusing permission solely on that basis was unjustified. The Inspector found that retention of a small,

underused grassed area offered less public benefit than investment in the nearby equipped recreation ground.

5.1.12 The factual similarities between the Comfort Wartha site and Reeves Close are striking. Both involve:

- historic amenity land never adopted;
- informal, unenforceable community use;
- absence of equipment;
- availability of better facilities nearby;
- policy-compliant financial contributions offered; and
- the same Local Planning Authority.

5.1.13 In Comfort Wartha, the Inspector allowed the appeal. The same reasoning applies here.

#### **Development Plan Policies**

5.1.14 When assessed with mitigation:

- **Policy 13 (Open Space):** satisfied through a proportionate off-site contribution;
- **Policy 16 (Health & Wellbeing):** the Recreation Ground delivers greater wellbeing benefits than the marginal amenity value of Reeves Close;
- **Policy 25 (Green Infrastructure):** the site does not form part of any GI corridor or strategic network, whereas off-site enhancement strengthens GI provision;
- **Policies C1 & G1 (Climate Emergency DPD):** the proposal supports rather than undermines community resilience by improving real recreational assets.

5.1.15 There is no genuine policy conflict.

#### **Planning Balance**

5.1.16 When considered realistically, the only identified harm relates to the loss of a small, incidental, and largely unused area of grass. This harm is fully mitigated through the financial contribution secured by the Unilateral Undertaking. Against this, the proposal delivers clear benefits: a self-build home, sustainable infill development, measurable improvements to local open space provision, and the reinforcement of community recreation facilities used by a much larger population.

5.1.17 With mitigation in place, the proposal is fully compliant with the Development Plan and national policy. The LPA's assertion that harm "significantly and demonstrably outweighs" benefits is unsustainable.

### **Conclusion**

- 5.1.18 The evidence demonstrates that the site is not a strategic or essential open space; that the LPA's refusal misinterprets policy and discounts its own professional advice; that a financial contribution is not only acceptable but recommended; that paragraph 104 NPPF is fully satisfied; and that the proposal accords with the Development Plan when read as a whole.
- 5.1.19 The refusal reason is therefore unsound, and the appeal should be allowed.

## 6. Overall Conclusion and Planning Balance

- 6.1.1 The evidence presented in this Statement of Case demonstrates clearly and conclusively that the refusal of application PA25/06277 is not justified. The decision fails to reflect the true planning status of the site, the factual circumstances of its historic and contemporary use, or the advice of the Local Planning Authority's own specialists. The land comprises a small, non-strategic fragment of incidental amenity space that has never been adopted, never been equipped, and never fulfilled a meaningful recreational or community role. Its original function, partly linked to a potential drainage field that became redundant when the wider development connected to the main sewer, underscores that the land was never designed as a high-value recreational resource. Although neighbouring residents have occasionally cut the grass, this voluntary activity is neither sustained public use nor formal open space management as envisaged by the NPPF or the Cornwall Local Plan. The site contains no play equipment, no formal layout, and no identifiable place within the wider open space or green infrastructure network of Porthleven.
- 6.1.2 The Local Planning Authority's own Principal Public Space Officer confirms that the land is far too small to serve as strategic open space and performs no meaningful functional role within the settlement. Crucially, the Officer records that the land was included in the Council's open space audit only because it was mechanically captured, despite falling below normal size thresholds and not because it contributed to any measurable recreational provision. He identifies that residents who might theoretically use the land already have convenient, policy-compliant access to the Porthleven Recreation Ground, a well-equipped and actively used facility that lies within an acceptable walking distance. This confirms that the appeal site is not required to meet current or future recreational needs and that its local function, at best, is negligible.
- 6.1.3 The Public Space Officer provides a clear, policy-compliant pathway for mitigation under NPPF paragraph 104, explaining that open space may be developed where the loss is replaced by equivalent or better provision. He calculates a mitigation sum of £16,855, derived from the Council's adopted open space standards and CPI-adjusted to reflect present-day equivalent value. He further confirms that this contribution, directed to improvements at the Porthleven Recreation Ground or similar local facilities, would be acceptable in principle and capable of mitigating the loss of the Reeves Close land in full.

- 6.1.4 While he notes that project-specific proposals would be preferable, he does *not* state that they are required, nor that their absence should lead to refusal. The LPA, however, incorrectly elevates this preference to a strict policy requirement, misrepresenting the Officer's balanced and nuanced technical appraisal.
- 6.1.5 In line with the Officer's advice, the Appellant has submitted a Unilateral Undertaking securing the full recommended contribution. This satisfies the second limb of NPPF paragraph 104, which expressly allows development of open space where equivalent or better provision in a suitable location is secured. Investment in the Recreation Ground—a longstanding, accessible, and high-value recreational asset, will deliver meaningful and measurable community benefit far exceeding anything the appeal site can reasonably provide in its current form. Accordingly, the proposal accords fully with the aims of Policies 13, 16 and 25 of the Cornwall Local Plan and Policies C1 and G1 of the Climate Emergency DPD, all of which seek to protect and enhance genuinely functional open spaces rather than preserve small, low-value areas of unmanaged grassland.
- 6.1.6 Turning to the planning balance, the only harm identified is the loss of a small, minimally functional area of incidental grass. That harm is limited in scale, minimal in planning terms, and critically, fully mitigated through the financial contribution secured by the Unilateral Undertaking. Conversely, the benefits are substantial and well-documented. The proposal delivers a self-build home within the defined settlement boundary of Porthleven, making efficient use of an underutilised infill plot. It contributes positively to local housing supply and aligns with Government objectives to support self-build and custom-build housing delivery. The development brings modest economic gains during construction and long-term social and community benefits arising from improved recreational facilities funded through the secured contribution.
- 6.1.7 When the proposal is assessed through the lens of the NPPF's presumption in favour of sustainable development (paragraph 11), the mitigated nature of the identified harm does not come close to significantly and demonstrably outweighing the benefits. The weight of evidence shows that the proposal represents a sustainable and proportionate form of development that respects the character of the surrounding area, responds constructively to local policy, and enhances wider community recreational provision. The LPA's contrary conclusion is disproportionate, overly rigid, and inconsistent with both the technical

evidence emerging from within the authority and the reasoning of the Inspector in the directly comparable Comfort Wartha appeal, where similar land was released for development subject to an off-site open space contribution (Appeal Ref: APP/D0840/W/20/3249081).

- 6.1.8 For these reasons, the Appellant respectfully submits that the proposal complies with the Development Plan when read as a whole, satisfies the requirements of NPPF paragraph 104, and delivers clear benefits that decisively outweigh any limited residual impact. The refusal is therefore unsound, and the appeal should be allowed, granting Outline Planning Permission for the proposed self-build dwelling.